From:	Kelly Akin
To:	Danielle Martin
Cc:	Gustavo Galdo; Stephanie Verganza
Subject:	RE: Questions on Entity Status Jamaica
Date:	Tuesday, March 18, 2025 2:18:21 PM
Attachments:	image001.png image002.png image003.png

Hi Danielle,

Thanks for the confirmation. For currently registered charities, the Charities Act allows for organizations to request suspension of their registration for a period. See below requirements under the legislation at subsection (c).

21.—(1) Subject to subsection (2), the Authority may, suspend the approval for the registration of an organization as a charitable organization granted under this Act, if— Suspension of approval.

(*a*) the registered charitable organization has failed to pay any fees or other charges required by this Act or any regulations made hereunder;

(*b*) the registered charitable organization is in breach of—

(i) any provision of this Act or any regulations made hereunder;

(ii) any term or condition subject to which the approval is granted; or

(iii) an undertaking given pursuant to sections 32, and the circumstances set out in section 33(1) apply;

(*c*) the charitable organization notifies the Authority in writing that it intends to cease operations for the period stated in the notice;

The options are therefore (in order of preference):

1. to keep the company up and running by filing the annual returns with COJ and ask for a suspension of registration from the Charities Authority (DCFS); or
2. to keep the company up and running by filing the annual returns with COJ and DCFS and renewing the charitable status yearly; or
3. to remove the company and deregister the charity and re-register once you are up and running again.

Let me know if you need additional information on either option above.

Kelly Akin | Partner
DunnCox
Head Office: 48 Duke Street | Kingston | Jamaica | W.I.
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From: Danielle Martin <dmartin@partners.net>
Sent: Tuesday, 18 March 2025 12:00 pm
To: Kelly Akin <Kelly.Akin@dunncox.com>

Cc: Gustavo Galdo <ggaldo@partners.net>; Stephanie Verganza <SVerganza@partners.net>
Subject: RE: Questions on Entity Status Jamaica

Hi Kelly,

Thank you again for all your information, very helpful!

Yes, we do have an updated chartable registration through June 2025, so we are trying to determine next steps with the entity. Is there any issue leaving an entity for a few years with no operations as long as we update our charitable status yearly and submit the annual filings?

Thank you,

Danielle Martin
Director of Grants and Contract Compliance

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*Partners in**spires** through our values of **S**ervice, **P**artnership,**i**mpact, **R**esilience, **R**espect, **E**mpowerment and **S**ustainability.*

From: Kelly Akin <Kelly.Akin@dunncox.com>
Sent: Monday, March 17, 2025 1:24 PM
To: Danielle Martin <dmartin@partners.net>
Cc: Gustavo Galdo <ggaldo@partners.net>; Stephanie Verganza <SVerganza@partners.net>
Subject: RE: Questions on Entity Status Jamaica

Danielle,

Thanks for sharing the certificate from the charities authority. I note however, this certificate has expired, is there a current one?

Alos, see below my further comments:

1. What are the costs and requirements associated with keeping the Partners Technical Exchange Jamaica Limited active/operational without implementing any activities? – operational costs would depend on what is required for keeping POA active (eg. rent, utilities, salaries, taxes if any etc.). So if the charity closed it office, the only fee we would incur each year is the annual returns, is that correct? – YES, annual returns to the Companies Office and Charities Office
    a. Are there mandatory filings each year? or reports? – annual returns to be filed at the Companies Office (filing fees approx. US$60-70 plus legal fees), tax returns filed annually (information nest to be obtained from your accountant on tax filings). When was the last annual return filed for the company? Understood, we usually file in February. I'll have to check on the most recent filing. So even if there are no operations, this annual filing is needed correct? - YES
    b. Do we have to provide notices to any ministries? – this would depend on the agreement you had with government (if any) in relation to the Farmer to Farmer Program. If there was no agreement with the government then no notice of closure will be required except to the

COJ where the removal would be filed. We didn't have a specific agreement. What is the COJ? – COJ = Companie Office of Jamaica

2. Is there a way to temporarily suspend operations and resume at a later date? If so, what is the longest time we can be suspended for? There is no way to temporarily suspend a company. Understood, thanks
    a. What are the requirements during suspension?
    b. How easy is it to re-activate our operations after suspension?
3. What are the local legal requirements for physical record retention in Jamaica? Can we retain files digitally or are we required to have physical copies as well? – documents may be retained digitally. We recommend keeping physical copies of certificates issued by the Government (eg. Certificate of incorporation) however physical copies do not need to be kept in Jamaica. Great to know, thanks
    a. If physical copies are required in country, how long must we retain them?

Best regards,

Kelly Akin | Partner
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From: Danielle Martin <dmartin@partners.net>
Sent: Friday, 14 March 2025 4:11 pm
To: Kelly Akin <Kelly.Akin@dunncox.com>
Cc: Gustavo Galdo <ggaldo@partners.net>; Stephanie Verganza <SVerganza@partners.net>
Subject: RE: Questions on Entity Status Jamaica

Hi Kelly,

Thank you for the quick response!

We are interested in understanding the options to keep the local charity open. Our status is:

This is to certify that the above named organization is an Approved Charitable Organization as under Section 2 and Section 17 of the Charities Act, 2013 and as such is eligible for tax exemption or relief under the Income Tax, G. C. T, Property Tax, Stamp Duty, Transfer Tax and Customs Acts.

Please see my responses below in red.

Thanks,

Danielle Martin
Director of Grants and Contract Compliance

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From: Kelly Akin <Kelly.Akin@dunncox.com>
Sent: Friday, March 14, 2025 4:36 PM
To: Danielle Martin <dmartin@partners.net>
Cc: Gustavo Galdo <ggaldo@partners.net>; Stephanie Verganza <SVerganza@partners.net>
Subject: RE: Questions on Entity Status Jamaica

Hi Danielle,

Please see below my responses highlighted yellow. These responses are provided on the basis that POA is not a registered charity in Jamaica.

Best regards,

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From: Danielle Martin <dmartin@partners.net>
Sent: Friday, 14 March 2025 2:36 pm
To: Kelly Akin <Kelly.Akin@dunncox.com>
Cc: Gustavo Galdo <ggaldo@partners.net>; Stephanie Verganza <SVerganza@partners.net>
Subject: Questions on Entity Status Jamaica

Dear Kelly,

I hope you are doing well. Unfortunately, we received a termination notice for our Farmer-to-Farmer Program in Jamaica and are working to quickly close out our operations. Right now, that is the only project we have in Jamaica, so we would not have other operations at this time. We are actively applying to other projects in Jamaica, but will not know for a few months if we will be awarded.

As a result, we are hoping for your support in clarifying a few items for our entity:

1. What are the costs and requirements associated with keeping the Partners Technical Exchange Jamaica Limited active/operational without implementing any activities? – operational costs would depend on what is required for keeping POA active (eg. rent, utilities, salaries, taxes if any etc.). So if the charity closed it office, the only fee we would incur each year is the annual returns, is that correct?
    a. Are there mandatory filings each year? or reports? – annual returns to be filed at the

Companies Office (filing fees approx. US$60-70 plus legal fees), tax returns filed annually (information nest to be obtained from your accountant on tax filings). When was the last annual return filed for the company? Understood, we usually file in February. I'll have to check on the most recent filing. So even if there are no operations, this annual filing is needed correct?

   b. Do we have to provide notices to any ministries? – this would depend on the agreement you had with government (if any) in relation to the Farmer to Farmer Program. If there was no agreement with the government then no notice of closure will be required except to the COJ where the removal would be filed. We didn't have a specific agreement. What is the COJ?

2. Is there a way to temporarily suspend operations and resume at a later date? If so, what is the longest time we can be suspended for? There is no way to temporarily suspend a company. Understood, thanks
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   a. If physical copies are required in country, how long must we retain them?

Thank you so much for your assistance with these issues. We are happy to schedule a call with you as well, if easier.

Best,

Danielle Martin
Director of Grants and Contract Compliance

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